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IT LAW WEEK 12

1. Gap Analysis Report: Lesotho's Data Protection Act (2011) vs. the EU GDPR

The Data Protection Act (Lesotho) provides a foundational legal framework for protecting personal data in Lesotho. It establishes principles such as lawful processing, consent, data minimization, and security safeguards, and creates a Data Protection Commission to oversee compliance. (LEX Africa) However, when compared with the General Data Protection Regulation (GDPR), which came into force in 2018, several gaps become evident. These gaps limit the effectiveness of Lesotho's framework in addressing modern data protection challenges.

1. Limited Data Subject Rights (Right to be Forgotten and Portability)

While Lesotho's Act provides rights such as access, correction, and objection to processing, it does not fully articulate modern rights like the "right to be forgotten" and data portability in a robust and enforceable manner. (Data Protection Africa | ALT Advisory) Although deletion of inaccurate data is allowed, it lacks the broad scope found in the GDPR, where individuals can request complete erasure of their data under specific conditions.

In contrast, the GDPR explicitly guarantees:

- The right to erasure ("right to be forgotten")
- The right to data portability (transfer of data between service providers)

Proposed Amendment:
Lesotho should amend the Act to include:

- A clearly defined and enforceable right to erasure in all applicable circumstances (e.g., withdrawal of consent).
- A right to data portability, allowing individuals to obtain and reuse their data across platforms

2. Weak Breach Notification Requirements

The Lesotho Act requires data controllers to notify both the Commission and affected individuals in the event of a data breach, but it only specifies that this should occur

within a "reasonable time." (Law Gratis) This lack of a strict timeline creates uncertainty and may delay responses to serious breaches.

By contrast, the GDPR imposes a strict requirement that data breaches must be reported within **72 hours** of discovery, ensuring timely mitigation of harm.

Proposed Amendment:

- Introduce a mandatory breach notification timeline (e.g., within 72 hours).
- Require detailed reporting standards, including the nature of the breach, affected data, and remedial actions.

3. Limited Independence and Powers of the Regulatory Authority

The Data Protection Commission in Lesotho is responsible for enforcement, but concerns exist regarding its independence and authority. The law does not clearly guarantee full institutional independence, potentially exposing it to political influence. (Data Protection Africa | ALT Advisory) Additionally, enforcement powers and penalties are less stringent compared to GDPR standards.

Under the GDPR, supervisory authorities:

- Operate with full independence
- Have strong investigative and corrective powers
- Can impose substantial administrative fines

Proposed Amendment:

- Explicitly guarantee the independence of the Data Protection Commission.
- Expand enforcement powers, including the ability to issue binding orders and impose significant administrative fines.
- Provide adequate funding and technical capacity to strengthen oversight.

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4. Scope and Technological Coverage Gaps

The Lesotho Act has limitations in addressing modern digital issues such as cookies, online tracking, and emerging technologies. It also has ambiguities regarding automated processing and may narrow its scope unintentionally. (DLA Piper Data Protection)

The GDPR, by contrast, is technologically neutral and explicitly regulates:

- Profiling and automated decision-making
- Online identifiers (cookies, IP addresses)
- Cross-border data flows with strict safeguards

Proposed Amendment:

- Expand the Act to explicitly regulate digital technologies, including cookies and AI-based processing.
- Clarify that both automated and manual data processing are fully covered.

Conclusion

Although Lesotho's Data Protection Act (2011) aligns with basic international principles, it falls short of the comprehensive and modern protections provided by the GDPR. Key gaps include limited data subject rights, vague breach notification rules, weak regulatory authority, and insufficient technological coverage. By adopting targeted amendments—particularly around enforceable rights, strict timelines, and stronger institutional powers—Lesotho can significantly strengthen its data protection regime and align with global best practices.

2. **Stakeholder Briefing Memo**

To: CEO
From: IT Consultant
Subject: Key Legal Compliance Risks for E-commerce Launch in Lesotho

As your company prepares to launch its new e-commerce platform, it is essential to address key legal risks under Lesotho's IT regulatory framework. The most critical areas of concern fall under data protection, cybercrime, and e-commerce regulations. Failure to comply could result in financial penalties, reputational damage, and operational disruption. Below are the three most important risks and recommended first steps to mitigate each.

1. Data Protection Compliance Risk

Under the Data Protection Act 2011, your company will be required to ensure that all personal data collected from customers (e.g., names, contact details, payment information) is processed lawfully, securely, and transparently. A major risk lies in

inadequate consent mechanisms or weak data security controls, which could lead to data breaches or unlawful processing.

Recommended First Step:
Conduct a **Data Protection Impact Assessment (DPIA)** before launch. This will help identify what personal data is collected, how it is processed, and where vulnerabilities exist. Additionally, implement clear privacy policies and obtain explicit user consent during account registration.

2. Cybercrime and Security Risk

The Computer Crime and Cybercrime Act criminalizes unauthorized access, data interference, and cyber fraud. E-commerce platforms are prime targets for hacking, phishing, and payment fraud. A successful cyberattack could compromise customer data and expose the company to legal liability for failing to implement adequate security measures.

Recommended First Step:
Implement **baseline cybersecurity controls** aligned with international standards. This includes secure socket layer (SSL) encryption, firewalls, multi-factor authentication for admin access, and regular vulnerability testing. Appoint or outsource to a cybersecurity specialist to continuously monitor threats.

3. E-commerce and Consumer Protection Risk

E-commerce activities in Lesotho are guided by principles found in the Electronic Transactions and Electronic Commerce Act, which regulates online contracts, electronic communications, and consumer rights. Risks include unclear terms of sale, lack of transparency in pricing, and failure to provide proper refund or return policies. These issues can lead to disputes and regulatory scrutiny.

Recommended First Step:
Develop **clear and legally compliant website policies**, including terms and conditions, refund/return policies, and transparent pricing structures. Ensure that customers are fully informed before completing a transaction and that electronic contracts are valid and enforceable.

Conclusion

Launching an e-commerce platform in Lesotho presents significant opportunities, but also legal responsibilities. By proactively addressing data protection, cybersecurity, and consumer protection risks, your company can build trust, avoid penalties, and ensure long-term success. Early investment in compliance is far more cost-effective than responding to legal issues after launch.

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